HOLY TRINITY UNIVERSITY, ADDIS ABABA

CANON LAW AND CHURCH ADMISTRATION II

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CHAPTER ONE: CANON LAW AND CHURCH ADMINISTRATION

1.1. Definition of Canon Law or Church Law

- The word "canon" is derived from a word that originally denotes a means to measure wood or stone for construction and, when used for the Orthodox Church's ecclesiastical legislation, implies a standard for behavior
- The canons of the Church may be viewed as a set of rules governing the lives of the faithful.
- It is the body of law and regulation made or adopted by lawful ecclesiastical authority, for the government of the Christian Church and its members
- It is the tradition of canonical legislation, which governs Orthodox Church life.
- It is an official proclamation given by church fathers at ecumenical, particular council (synod).
- In theological terms, canon law reflects the application of truth, the Church's divine nature, within a very historical dimension, the Church's human nature.

- Canon Law can be said church law, ecclesiastical law or religious law

1.2. Purposes of Canon law: It used:

- To reflects social, political, economic, cultural and ecclesiastical changes that have taken place in the past two millennia.
- To ensure the mission of the church (i.e. the salvation of the souls).
- To keep church authority, rules and organizational structure.
- To involves in the development and maintenance of church institutions through liturgy, preaching, and social activities.
- To makes the hierarchical and organic structure of the Church visible.
- To ensures the proper exercise of the blessing function of the Church.
- To provides rights, obligations, and methods of resolving conflicts in the Church
- To provides the structures that sustain and direct the Church's common initiatives.

1.3. Natures of Canon Law

- As a system of rules, canons can be organized and applied to categories of human behavior in its physical, spiritual and Social dimensions.
- Canons usually used to cheek the purity or impurity of the believers.
- The application of church law is illustrated by legislation dealing with spiritual or unspiritual life.
- Canon law is the attempt to apply dogma to practical situations in the daily life of each Christian. From this point of view, canon law expresses God's truth given the time and circumstances.
- The canons are a divine-human reality parallel to the nature of the Savior and an extension of God's saving work and divine redemption.
- As an incarnational reality, canon law is the expression of the Church's pastoral life.

1.4. Characteristics of Canon Law

- It must depend on theology for its inspiration.
- It should be made or adopted by lawful ecclesiastical authority.
- It should be systematic and controlled

1.5. Canon law as Ecclesiology

- Orthodox canon law is part of ecclesiology or the theology of the Church.
- Canon law is an expression of the Church's existence in history and constitutes knowledge about the Church in this sense.
- It is the practical and daily historical description of the Church's life in any period.
- Nevertheless, a canon's appearance in a collection does not mean that it was in force. Some canonical collections are simply preserving the memory of long-gone institutions and practices.
- In summary, Orthodox canon law is linked to the nature of the Church, which, in turn, is based on Christology.

1.6. Scope of Canon Law

- **General laws (Universal ecclesiastical laws):** They are not limited to the a particular territory; it is universally applicable. Universal law do not derogate with special laws.
- **Particular canon laws:** They are made for a particular territory. Particular laws are promulgated in the manner determined by the legislator.

1.7. Definition of Church

- Christianity and Christian church was established by Jesus Christ (Matt 16:18)
- Christian church is the assembly (community) of the Christians who are chosen for the heavily glory.
- The word Church allegorically may refer to one of the three things:
- The lord’s Body (the individual)
- The Congregation of the believers
- The Lord’s house or the Consecrated building
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1. 8. Types or symbols of the Church

A. In the OT

- Noah's Ark (Gen 7:124; Matt 11:28; Jon 6:37)
- Ordination of Melchizedek (Gen 14:18-20;Pslm 109:1-4)
- The Bethel(the house of God) (Gen28:19)
- The Mount Sinai (The Mountain of Musa) (Exodus 19:2;24:16)
- The Tabernacle or The sacrament House (Exodus 33:7-10 Revelation 21:3)
- The Table of Solomon (1 King 6:37, 8:44; 9:3)

B. In the NT

- The Net of Fish (Matt 13:46)
- The Field of good seed (13:24)
- The Grain of Mustard Seed (Matt 13:31; Luk 13:18)
- The House of marriage (Matt 22:1-10; Jon 2:1)
- The body of Christ (Eph 5:1)

C. In Patristic Writing

- ቤተ ክርስቲያን በተጋድሎ ላይ ያሉ የንጹሐን ምዕመናን፤ ተጋድሎአቸውን የፈጸሙ የቅዱሳን ሕብረት ናት ***(ዮሐንስ አፈ-ወርቅ)***
- ቤተ ክርስቲያን ስሮቼ በምድር ቅርንጫፎቼ በሰማይ ያሉ ናቸው ***(ቅዱስ ያሬድ)***
- መንፈሳዊት ዐደባባይ ከክርዳድ በቀር የስንዴ ማከማቻ የምትሆኚ ቅድስት ቤተ ክርስቲያን ለምኚልን፤ የወልድ ሥጋው የሚሰዋብሽ መስገጃና መለመኛ አንቺነሽ ***(አባ ጊዮርጊስ)***

1.9. Attributes of the Christian church

A. The Christian Church is One

- Since the Christian Church is the body of Jesus Christ, there is only one Christian Church (Eph. 4:46).
- The Church is united with God , having one Bible and one faith (Eph 4:5). It mean that:
- All baptized members are united by faith to the great Head of the Church (i.e. Jesus Christ).
- All are members of the one body of Christ.
- The oneness of the Christian Church does not consist in outward organization, but in oneness of faith.
- They have the same Lord, the same Holy Spirit dwells in them, they have the same Word, and the same baptism and the same Holy Eucharist.
- These human disagreements simply show that we see in part and understand in part, but the fact that we see in part does not change either God or His gifts.

Attributes of the Christian church

B. The Christian Church is Holy

- Since Christ is Holy, His body (the Church) is Holy (Eph5:25-27)
- The Church is Holy, because the Holy Spirit dwells in it. It is not the holiness of the believers that makes the Christian Church holy, but the presence of the Holy Spirit in the believers.
- The Holy Spirit not only invests the Christian Church with holiness, even though the members are not perfect, but He is also leading the Christian Church towards the goal when all imperfections shall have disappeared and the Christian Church of Christ shall appear before Him cleansed from all impurity.
- Since the Holy Sprit transforms the Church members into the likeness of God, they should dislike sin and keep themselves from the worldly life.

Attributes of the Christian church

C. The Christian Church is Universal

- The Christian Church is universal. The word ***'Universal'*** is imply that the Church is in heaven and on earth.
- And in our creed when we admit that 'I believe in the Holy, Universal Christian Church', it simply means I believe in the holy, assembly of the Christian Church.
- The reason that the Orientals Orthodox Christian Church as a rule do not use the word 'Church' is that the word has become the name of certain denominations, like: Roman Catholic and Protestants Churches.
- By the universality of the Christian Church we mean that it includes all believers regardless of nationality and race, or time.
- The Christian Church embraces all believers both on earth and in heaven, wherever they live and at whatever time.
- With out any ethnic discrimination, the church belongs to all its members (Rom10:12; 1Cor 12:13).

Attributes of the Christian church

D. The Christian Church is Apostolic

- The Christian Church is called apostolic, because it is built on the faith confessed by the apostles, that is, upon the apostolic confession (Matthew 16:፡ 18-19).
- The Members of the Church continue to grow untidily on the basis of the apostolic faith.
- ‘በሐዋርያትና በነቢያት መሠረት ላይ ታንጻችኋል የማዕዘኑም ራስ ድንጋይ ክርስቶስ ኢየሱስ ነው፤ በእርሱም ሕንጻ ሁሉ እየተጋጠመ በጌታ ቅዱስ ቤተ መቅደስ እንዲሆን ያድጋል፤ በእርሱም እናንተ ደግሞ ለእግዚአብሔር መኖሪያ ለመሆን በመንፈስ አብራችሁ ትሠራላችሁ’ (ኤፌ.2.20-22)።

CHAPTER TWO: CHURCH ADMINISTRATION

2.1. Concepts of church administration

- There are some basic concepts or principles about church administration, which are foundational in the Christian context. These concepts are as follows:
- Each believers in the body of Christ has a function or ministry to perform.
- The ultimate aim of church leaders should be that of serving the church rather than that of being served.
- Church Leaders must be willing to accept responsibility for directing the ministries of the church.
- Laities are more important than structure.
- A clearly defined administrative structure is essential.
- All positions in church ministry are important.
- Policies of administration need to be written and communicated openly.
- Delegating responsibilities to others is a vital part of administrative leadership.
- Developing, motivating, and staffing lay leaders in positions of responsibilities are one of the most important functions of Church leadership.

2.2. Definition of Church Administration

- The Bible presents the concept of Church administration *as a gift from God*. When we look at the letter of Paul to the Corinthians, we read that and in the Church, God has appointed... those with gifts of administration (1 Cor. 12:28).
- Church administration is spiritual service to the Body of Christ which involves the wise stewardship of God's resources for the accomplishment of the work of ministry.
- Church Administration has to do with the organization of church ministry, and with the operations that govern that organization
- Church Administration is the leadership which equips the church to be the church and to do the work of the church only.
- Church Administration is the guidance provided by church leaders as they lead the church to use its spiritual, human, physical, and financial resources to move the church toward reaching its goals and fulfilling its affirmed purpose (Charles, 1985).
- Church Administration is the process of providing the efficient services to the ministry along with satisfying the happiness and will of God (Charles 1985).
- Whatever you do, work heartily, as for the Lord and not for men, knowing that from the Lord you will receive the inheritance as your reward. You are serving the Lord Christ (Colossians 3:23-24)
- Throughout the New Testament, there are four main categories of church administration that are written of the *head pastor* (Eph. 1:22), *deacons* (Rom. 16:1), *elders* (1 Tim.5:17), and *the flock*, which is often called the body of Christ.

2.3. The Purposes of Church Administration

- The effective use of church administration is directed the church towards achieving the following:
- **To clarify the church's purpose**
- The first task of church administration is to help the church clarify its purpose and to act upon it (Tidwell, 1985:72-73).
- The Church administration determines and clarifies a church's mission and objectives and then moves in a "coherent, comprehensive manner to accomplish those ends (Encyclopedia of Southern Baptists , 1982: 2156). Thus, administration provides the means through which a group can fulfill its purpose.
- Consequently, good administration would maximize the stewardship of resources since church resources are limited on the everyday level (Tidwell, 1985:73-74).

The Purposes of Church Administration…

- **To equip the church for ministry:**
- Effective ministry is an enabling ministry. An effective leader or minister or pastor is an enabler of other people.
- Equipping the church for ministry has to do with equipping persons.
- Church administration is aimed at involving persons in ways that will facilitate mission and promote spiritual growth, as well as cooperate team work.
- More so, the church being an organism is “a complex structure of inter-dependence and subordinate elements whose relations and properties are largely determined by their function in the whole (Tidwell, 1985:13).

The Purposes of Church Administration

- **To consider social impacts and responsibilities of church actions:**
- Church administration is geared towards considering the social impact and responsibilities of church actions.
- The goal of church administration is to involve all members of the church in the work of supporting to the community to meet the needs of the people (Lindgren, 1965:85)

2.4. Principles of Church Administration

- The following are some of the principles, which can be applied in lead a Christian church.

A. Mobilization of the laity

- Good administration will utilize the skill of mobilizing the laity in doing the work of the church.
- This has been identified as the primary principles for church growth before other principles can be directed towards growth.

B. Discipleship Training

- Numerical growth ought to be a primary concern for the church.
- Church growth focuses attention on Matthew 28:19 and the emphasis not on producing changes, but on making disciples.

Principles of Church Administration….

C. Developing spiritual gifts

- The laity is individually gifted, as such when these gifts are developed and employed in the service of the church; it promotes team work and growth.

D. Utilization of resources

- Church growth involves concentrating church's resources on responsive elements in the society.

D. Good demographic Setting

- Church growth is not an event but a process. It is not static but dynamic.
- Principle as a fundamental truth demands that the church grows up in a place and fashion its ministry in a setting that is natural to the community

2.5. Who are Church Administers?

- In general, anyone who is responsible to carry others can be a leader like:
- Pastor is a administer to the church.
- An elder or deacon is a administer within the church.
- A husband is a administer to his wife.
- Parents are administer to their children.
- Teachers are administer to their students.
- Employers are administer to their employees.
- An older child is a administer to his younger brothers and sisters.

2.6. The Features of good church Administers

- The ultimate aim of church administers should be that of serving rather than that of being served.
- They must be willing to accept responsibility for directing the ministries of the church.
- When we are serving "church", we are to do it in a proper manner, it mean that:
- There should be order, not disorder.
- There should be emotional response, not selfishness.
- There should be consistency, not disharmony.
- There should be guidance, not negligence **(Corinthians 14:26-40).**

The Church administration and its power

- The church power contains three majors administration powers :
- Powers related with Educational administration,
- Powers related with performance the sacred thing and
- the jurisdictional power.
- The church should have a school to keep her teaching and perform, the gifts with the help of the grace of God.

2.7. Qualities of church Administers

A. The one who established Boundaries

- Every relationship is defined and preserved by boundaries.
- Stepping over those boundaries damages or destroys the relationship of laities and the Administers. A good administers will establish and maintain boundaries.
- For the shepherd, there is a sheep pen within which only his sheep may gather (John 10:1-2).
- For good leaders, there are appropriate ethical, moral, and other boundaries that administers or leaders need to establish and maintain for the benefit of those they lead.

B. The one who have an exemplary life

- The shepherd “goes on ahead of the sheep, and his sheep follow him” (10:3-4).
- Any true administers will lead by example. It is not a case of do as I say, not as I do. True administers must be worthy models to the followers.

Qualities of church Administers…

C. Trustworthy

- Sheep follow the good shepherd because they know his voice (John 10:4). This is learned over time from the consistent and caring treatment of the sheep by the shepherd.
- A leader needs to cultivate a deep sense of trust within those he leads. This is a quality in which one's voice evokes the character and care of a shepherd-leader.

D. The one who deliver good thing to the flock

- A shepherd provides good pasture (John 10:9). In Psalm 23, a 'sheep' says of the Shepherd: I shall not be in want. He makes me lie down in green pastures. He leads me beside quiet waters. He restores my soul.
- True leaders provide for the real needs of those they lead. For instance, they do not grind down their employees in unhealthy environments at less than livable wages.
- They do not fire them without caring about what happens to them. When it comes to a leader's choices, a person is more important than a profit. A leader acts in a way that gives life to those he leads (John 10:10)

Qualities of church Administers…

E. The one who Scarify his life to the flock

- Five times Jesus speaks about laying down his life for the sheep (John 10:11, 15, 17-18).
- The good shepherd chooses personal sacrifice for the welfare of his sheep.
- The same is true of shepherd-leaders. They willingly experience personal sacrifice for the benefit of those they lead. It's not about the leader; it's about those being led.

F. The one who Advanced his flock

- The shepherd has a personal stake in the well-being of the sheep.
- A hired hand will abandon them when the going gets tough or dangerous for him, it's only a job. The shepherd is invested in the sheep and sticks with them through thick and thin (John 10:12).
- They are personally invested in those they lead.

Qualities of church Administers…

G. The One who have Social life with his Flock (Interpersonal)

- I know my sheep and my sheep know me (John 10:14).
- The true leader takes the time and energy to build solid and genuine relationships with those he or she leads.
- Those led are not viewed as mere employees, servants, or objects; each is known and treated as an “image of God.”

H. The One who have Vision (being Visionary)

- Jesus had a vision of the future and lived for the fulfillment of that vision.
- In this case, it was increasing the size of his flock those who would become his genuine followers (John 10:16).

2.8. The Functions of Church Administers

A. Planning

- It is the basic function of management. It deals with chalking out a future course of action & deciding in advance the most appropriate course of actions for achievement of pre-determined goals.
- It is an exercise in problem solving & decision making. Planning is determination of courses of action to achieve desired goals.
- Thus, planning is a systematic thinking about ways & means for accomplishment of pre-determined goals.
- Planning is necessary to ensure proper utilization of human & non-human resources.
- It is all pervasive, it is an intellectual activity and it also helps in avoiding confusion, uncertainties
- As Church Administers, Church Fathers must deciding in advance
- What to do, How to do, When to do and Who is going to do it
- Bridges a gap between where we are today and where we want to reach.
- Sets the goal of an organization

B. Organizing

- It is the process of bringing together physical, financial and human resources and developing productive relationship amongst them for achievement of organizational goals.
- To organize a business is to provide it with everything useful or its functioning i.e. raw material, tools, capital and personnel's.
- To organize a business involves determining & providing human and non-human resources to the organizational structure.

Establishing the framework of working

- How many units or sub-units or departments are needed.
- How many posts or designations are needed in each department.
- How to distribute authority and responsibility among employees
- Once these decisions are taken, organizational structure gets set up.

Organizing as a process involves

- Identification of activities.
- Classification of grouping of activities.
- Assignment of duties.
- Delegation of authority and creation of responsibility.
- Coordinating authority and responsibility relationships

C. Staffing

- Staffing is the process recruiting, selecting, appointing the employees, assigning duties, maintaining cordial relationship and taking care of grievances of employees.
- Training and Development of employees, deciding their remuneration, promotion and increments.
- Evaluating their performance.
- It is the function of manning the organization structure and keeping it manned.
- Staffing has assumed greater importance in the recent years due to advancement of technology, increase in size of business, complexity of human behavior etc.
- The main purpose o staffing is to put right man on right job i.e. square pins in square holes and round pins in round holes

Staffing involves

- Manpower planning (estimating man power in terms of searching, choose the person and giving the right place).
- Recruitment, selection & placement.
- Training & development.
- Remuneration.
- Performance appraisal.
- Promotions & transfer.

D. Directing

- Directing is the process of giving direction or instruction to employees to get the job done. Leadership qualities are required.
- Motivating employees by providing monitory and non
- monitory motivations.
- Communicating with them at regular intervals.
- It is that part of managerial function which actuates the
- organizational methods to work efficiently for achievement of organizational purposes.
- It is considered life-spark of the enterprise which sets it in motion the action of people because planning, organizing and staffing are the mere preparations for doing the work

Directing

- Direction is that inert-personnel aspect of management which deals directly with influencing, guiding, supervising, motivating sub- ordinate for the achievement of organizational goals.
- **Supervision:** It implies overseeing the work of subordinates by their superiors. It is the act of watching & directing work & workers.
- **Motivation:** It means inspiring, stimulating or encouraging the sub-ordinates with zeal to work. Positive, negative, monetary, non monetary incentives may be used for this purpose.
- **Leadership:** It may be defined as a process by which manager guides and influences the work of subordinates in desired direction.
- **Communications:** It is the process of passing information, experience, opinion from one person to another. It is a bridge of understanding

E. Controlling

- Controlling is the process of matching actual performance with the planed goal.
- If problem, tries to find out the reasons of deviation.
- Suggesting corrective measures come on the path of plan
- It implies measurement of accomplishment against the standards and correction of deviation if any to ensure achievement of organizational goals.
- The purpose of controlling is to ensure that everything occurs in traditional values with the standards.
- An efficient system of control helps to predict deviations before they actually occur.
- Controlling is the process of checking whether or not proper progress is being made towards the objectives and goals and acting if necessary, to correct any deviation. Therefore controlling has following steps:
- Establishment of standard performance.
- Measurement of actual performance.
- Comparison of actual performance with the standards and finding out deviation if any Corrective action.

Things to be Considered for lading an organization

- Select your group members carefully and Motivate them
- Develop good communication for Strengthen human relations skills
- Strive to attain effective interpersonal relationship.
- Minimize conflicts among the group made you.
- Learn to speak and to listen effectively.
- Set high standards or proposed levels of achievement.
- See situations from the other person's viewpoints, Because effective in decision making.
- Adapt a question attitude to discover and use new idea.
- Be a leader by getting involved in the action.
- View management as the opportunity to influence other people's favourably.
- Evaluate what is achieved and if necessary take corrective action.
- Spread time on matters that are really important.
- Plan and follow through on program.
- Express personal feelings and understand the feelings of others.
- Look for the best in others not the worst.
- Make sure each group member is assigned the work best suited for that person.
- Encourage members to assume responsibility
- Appraise his or her own self and performance honestly.
- Evaluate the group members' consistently
- Keep expenditures at a minimum compatible with the service required.
- Increase personal over all knowledge.

Chapter Three: Duties and Responsibility of Church Administers

3.1. Administering Church Education

- The church should have a school to keep her teaching, unity and perform, the gifts with the help of the grace of God.
- The unity of the church is kept based on the unity of faith.
- If there is no unity of faith, the revealed Christian teaching cannot be kept; the unity of the church will not exist.
- The organ that can keep the unity of the church is the bishop. The bishop is expected to preach the gospel in order to make the persons inherit the kingdom of God.
- Due to this every bishop is assigned to a place where he is in a position to keep the true teaching the Church. And also all bishops are regarded as representative of the apostles on the earth.
- All bishops have the same power and dignity. In case, any quarrel is created regarding the faith, which touches all or the unity of the church and threatened purity as well as the integrity of the truth discovered, must listen the voice of the whole bishops.
- In relation with the question of belief and the decision about what to be believed, the church does not create a new dogma but witness only the truth discovered as well as the unchangeable tradition.
- The definitions of fixed dogmas by legal authorities are compulsory for all the members of the church unconditionally.
- Thus obligation power has the origin in the content of those definitions which do not include any innovation but only the explanation of the traditional belief.

Purposes of Church Education:

- **Church Education is used:**
- To keep the loyalty of Holy Scriptures.
- To preserve the early Tradition of the Church
- To protect or defend Orthodoxy from false teaching
- To establishes and sustain the Kingdom of God
- To keep the Unity of the Church with Faith and Love.
- To keep the Dogmatic, canonical teaching and Rites of the Church.
- To educate the laities about faith and spiritual life.

3.2. Preaching the Gospel

- Preaching the Gospel is one of the duties and responsibility of church administers or leaders.
- **የማስተማር/ ሰባኪነት ተግባር፡** ማስተማር ማለት የእግዚአብሔርን ቃል ለሰው ልጅ ሁሉ ማሰማት ፤ ማሳወቅ፤ ማስረዳት እንዲሁም የሰውን ልጅ ከስተቱ ማረም መቻል ሲሆን ካህናትም በዚህ አገልግሎታቸው አስተማሪ ወይም ሰባኪ ይባላሉ **(ማቴ 28፡19፤ 1ጢሞ 4፡12)**።
- ካህናት በትምህርታቸው ያላመነውን ዓለም አስተምሮ ማሳመን፤ የአመነውን ዓለም ማጽናት፤ የጸናውን ዓለም መጠበቅ እንዲሁም በሁለት ልብ የሚያነክሰውን ዓለም ሚናውን እንዲለይ ማድረግ ይጠበቅባቸዋል ።
- ካህናት የሚያስተምሩት ትምህርት በመንፈስ ቅዱስ ኃይል፤ በሕይወት፤ በኃላፊነት፤ በበቂ ዝግጅት ጭምር የሚገለጥ መሆን አለበት።
- **1ተሰ 1፡5-** ወንጌላችንን በኃይልና በመንፈስ ቅዱስ በብዙ መረዳትም እንጂ በቃል ብቻ ወደ እናንተ አላመጣንም።
- **2ቆሮ 10፡11-** በመልክታችን በኩል በቃል እንዳለን በፊቱ ደግሞ ሳለን በሥራ እንዲሁ ነን።
- **1ጴጥ 3፡15-** ለሚጠይቁን ሁሉ መልስ ለመስጠት ዘወትር የተዘጋጃችሁ ሁኑ።

Preaching the Gospel…

- **የመጋቢነት ተግባር፡** መመገብ ማለት ደግሞ በክርስቶስ መከራ፤ ሞት፤ ትንሳኤ ለሰው ልጅ ሁሉ የተሰጠውን ልጅነት፤ ጸጋ፤ ክብር ለሚገባው አካል ማደል ወይም መስጠት ሲሆን ካህናት በዚህ ግብራቸው ከእግዚአብሔር ቀጥለው መጋቤ ዓለማት ይባላሉ ።
- **የጠባቂነት ተግባር፡** ጠባቂ ማለት ደግሞ ከቀን ሰባሪ፤ ከሌሊት ወራሪ መታደግ ወይም ማዳን ማለት ሲሆን ካህናት ምዕመናን ከተኩላ መናፍቅ፤ ከክህደት ትምህርት፤ ከደቄ ኃጢአት፤ ከርኩሳን መናፍስት ከልዩ ልዩ ፈተናዎች ሁሉ በየደረጃው የሚጠብቁ በመሆናቸው በዚህ ግብራቸው ጠባቂ/ኖላዌ ይባላሉ **(ዮሐ 21፡15)**።
- **ማቴ 24፡45-** ጌታው በቤተሰቦቹ ላይ የሾመው ታማኝና ልባም ባሪያ ማን ነው.. ጌታው መጥቶ እንዲህ ሲያደርግ የሚያገኘው ያ ባሪያ ብፁዕ ነው።
- **የሐስራ 20፡28-** በገዛ ደሙ የዋጃትን የእግዚአብሔርን ቤተ ክርስቲያን ትጠብቁአት ዘንድ መንፈስ ቅዱስ እናንተን ጳጳሳት አድርጎ ለሾመባት ለመንጋው ሁሉና ለራሳችሁ ተጠንቀቁ።
- The bishop is expected to preach the gospel in order to make the persons get the kingdom of God.
- To fulfil this every bishop is assigned to a place where he is in a position to keep the truth.
- All bishops are regarded as representative of the apostles on the earth and have the same power and dignity.
- In case, any quarrel is created regarding the faith, which touches all or the unity of the church and threatened purity as well as the integrity of the truth discovered, must listen the voice of the whole bishops.

3.3. Spreading Christianity

- The spreading of Christian teaching in a sense of respective/ individual is made through missionary service the church sends her teachers to the people who are not enlightened by Christianity in order to convert them to Christianity.
- The missionary service is a divine order and through the use of it, the church has strived for bringing all human races to Christ.
- The missionaries are in any respect dependents of the dioceses bishop and obligated in interval time to present report in detail over their activities.
- **The laws given by the church authorities for missionary requirements are:**
- Clear and exact speech of the true Christian belief from which is recommended as a means of foundation of school for the unbelievers,
- The influence over the heart through a kind advice and love through the justification of the belief and moral of unbelievers
- Strengthening the relation among the convert, the church and faith relation and so on.

Spreading Christianity…

- Only the bishops have complete rights in the church for preaching without the permission of the bishop nobody can preach in the church.
- Strengthening and spreading pure Christian teaching is used to make a catechumen one of the member of orthodox church.
- In the oldest canons of the Oriental church, it is said that the bishop or the priest who neglects the clergy and the people and does not teach on Sunday in devotion is to be deposed.
- In the earlier period of the church, baptism was preceded/ headed by the instruction about the fundamental truth of the belief and lasted till when it is proved by the respective priest.
- Later on when baptism is implemented for children the responsibility is transferred for God-father and Mother.
- Nowadays, this system is exercised in a way such that the priest gathers the laities in certain time in his parish and will explain to them fundamental belief.

3.4. Administering Sacred Things

- Something sacred is Holy, devoted to a religious ceremony or simply worthy of respect like Holy place, Holy Vessels, Hymen, Icons, Cross ….etc.
- The canons of ecumenical synod give us evidence that the church was very attentive for keeping strictly the old rule of the divine service and condemn any change.
- Besides the exact observation of the rules mentioned, sacred things must be implemented according to the order of the church with the fear of God; they must be performed publicly in the church and not in particular houses except in the case of jurisdiction.
- Participating public divine service on Sunday and holydays is compulsory to all believers; the church condemns those who neglect it.
- The church does not allow the participation of the believers for prayers and sacred rituals with non-Orthodox.

A. By whom the sacred things are Administered

- The organs for implementation of sacred things are obliged to watch for whom the priest should instruct them first, otherwise it is forbidden to perform the sacraments for these who do not know the fundamental truth of the belief.
- The priest or the bishop at least convokes (call for a meeting) the Holy Ghost using a certain formula through which the priest performs the sacrament with spiritual power.

B. How the sacred things are performed:

- The sacred things can be performed:
- Through bringing things in to the Tamable of God
- Through praying
- Through Blessing
- Through the use of different prayers conducted by the bishops or priests according to certain ritual.

C. Where the sacred things are performed

- The church is a place where the great priest brings sacrifice to God for the salvation of human soul.
- The sacrifice is performed then and now at all times in the church.

D. The Rites of the Seven sacraments

- It is the great sacrament from which all sacred things which exists today in the Oriental Orthodox Church developed.
- Some of them were decided even by the founder of the church (Christ) for the transmission of the divine grace, while others were instituted by the church in the course of time on the basis of the power given to her in order to be holy in her and the blessing of God.
- There are seven sacraments: namely baptism, myrrh (anointing), Eucharist, repentance, ordination, marriage and anointing. For a regular performance of any sacraments, it is necessary to have adequate material.
- All the sacraments have their origin from divine law and the church legislation.
- There are different prayers which must be performed according to certain ritual.

E. Purposes of Holy Sacraments

- The Sacraments were meant to follow a person's life from beginning to end.
- **Baptism:** initiation rite into the Christian community.
- **Confirmation:** people of their own will acknowledge their belief.
- **Holy Communion:** a meal of bread and wine that (Eucharist) Christians share in remembrance of Jesus' last meal.
- **Marriage:** ceremony blessing the union of a couple
- Ordination: ceremony to initiate new priests into the priesthood
- **Penance/Confession:** repenting of sins (Reconciliation) asking of forgiveness
- **Last Rites:** prayer service priest provides the dying or over the dead.

F. The Rites of prayers

- The church has introduced a lot of prayers not only for the distinguished occasion of the church but for all social life of human beings in general.
- Among these prayers some refer for the object in connection with church function; others for altar work, water consecration for the baptism, blessing of the oil, incense, the candle, the bell etc.
- consecration of the new church building, cemetery, etc. new houses, flags, tables, etc. prayer for protection from natural disaster, beseech/implore help for the sick etc.
- All these prayers are found with the ritual books. The bishop or priest has to perform these prayers.

G. The Organs for Administration of Sacred Things

- Any bishop or priest ordained legally can administer sacred things because God Himself works through them; the priest or the bishop is used as intermediate.
- The priest does not impart the gift of God to men but God Himself through the priest.
- The bishop has absolute right for the performance of any sacred thing in the church.
- The priest receives an authority from the bishop performing these things. Ordaining a priest or a deacon is the activities exclusively done by a bishop in the virtue/feature of his hierarchical power, while others are performed by priests.
- The deacons have no right to perform independent sacred things at a normal condition.

CHAPTER FOUR: CHURCH LEGISLATIONS

4.1. Church Legislation: Definition

- It is a set of rules and regulations that govern the practices and beliefs of a particular religious tradition.
- The founder of the church had given to his apostles the power of legislation that transferred it to their followers (bishops) episcopes.
- The legislation power of the church assisted by absolute divine power is developed in certain direction.
- The organs of the legislation power, do not declare in their own names but in the name of the Holy Spirit who lives in the church.
- Anybody is not allowed to issue the rule in his proper name but in the name of the Holy Spirit who works through him.
- The legislation power works in the name of the whole church as a body which is inspired by the Holy Spirit.

Church Legislation: Definition…

- The organs of these powers have permitted the sacrament of priesthood with which a special grace of God is attached.
- Having this view in the character of the church laws, the legislation power of the whole church is impossible to be possessed by a single person except the holy synod of ecumenical or local one.

Legislation of church law:

- The right to issue the law
- The right to apply the church law
- The right to translate in practice the church law.

4.2. Types of Church Legislations

A. General Church Legislations

- It is understood that the laws given by the superior church legislation power are compulsory
- It should be unconditional accepted by any church member.
- The fundamental rules which refer to the teaching of faith, sacraments and internal church administration were elaborated to know the bases put by Jesus Christ that are first made by the apostles and later by the ecumenical synods.
- It is developed in the ecumenical synod through the discussion of the heads of the autocephaly churches.

B. Special Church Legislations

- Besides the general church legislation, the canons permit any particular church to be organized.
- The second ecumenical synod, in its second canon had fixed jurisdiction on some significant episcopal throne and decided that every church looking after the respective synod.
- All the canons give the right of legislation to the bishop in the assigned diocese.
- The deviation with his own power of one bishop or any particular church, from these fundamental canons are received by all churches, to be a schismatic society, but if the bishop to be blamed must be deposed.

4.3. The Specific Nature of Church Order

- The determination to create a juridical order which safe guards the personal freedom of man should also be expressed in church order.
- Church law ought to be a living theological expression of man's right by its very nature.
- The key function of a church order as well as its aim is to protect and guarantee this proper responsibility in faith and its development.
- The quality of the ecclesiastical community as a sacramental community of faith is decisive for the nature and function of church law.

4.4. The Fundamental Principle of Orthodox church

- Accordingly, an orthodox code should be based on eight principles closely connected with ‘Dogma’ and Canon law. These are:
- The divine human nature of the Son of God.
- Universal church in which every member
- Collaborates in the work for the salvation of souls under the guidance of a hierarch organized in a synod system
- The exercise of ecclesiastical authority should be governed by the principle of economy.
- An independence of and at the same time
- Loyalty to the civil power
- The autocephalous character of the church
- Autonomy with regard to a superior orthodox authority.
- The acceptance of state laws in the ecclesiastical codes or the ‘Nomo canonical’ principle and finally
- The territorial principle according to boundaries of dioceses and parishes should correspond to the administrative canon law.

4.5. Bishops and church Legislations

- The bishop has the position of a legislation power in the church and its organization.
- According to the confession elaborated in the epistles of the apostles and the church fathers, the bishops were giving instruction and making regular corresponding to the situation in their jurisdiction.
- In the 4th century, the legislation activity of the bishop was legalized through the canons.
- The 34th apostolic canons have insured the independence and right of the bishop in order to look after interests of the churches.
- The bishop is a light of the followers of the apostles and he has a duty to keep relation with other bishops and churches to exercise the apostolic mission in the church.
- A decision of a bishop remains obligatory if it is not against the canons.

4.6. Particular Right of the believers

- **Equality and Brotherhood:** It is believed all human are born free and equal in dignity. They are endowed with reason and conscience and should act toward one another in a spirit of brotherhood.
- **A personality cult/ trendy is not recognized in law**: Church law should be radically and decisively reject any chains that might suggest inequality among the faithful on principle whatever the function.
- **Avoiding discrimination:** the second article rejects and forms of discrimination in law birth and social background have no claims to special privilege. It is urgently necessary for the law to abolish radically, still legally existing "minority status" of secular and regular female superior.
- **Equality in the administration of justice:** Canon law recognizes the principle that anybody can seek protection for any right he has in the community. In a sacramental community of faith, it is extremely important that the legal way of protecting ones ecclesial rights is clear, public and open to every member with regards to every other member.
- **Impartial justice:** the existence and effective functioning of independent and impartial justice is a service to both parties and prevents many conflicts that are otherwise difficult. A solution which also will satisfy the community can only be given by an impartial judge who is not dependent of the bishop.

Particular Right of the believers …

- **Respect for the private life:** these who were adequately protected by church law against almost unlimited interference in private affair and under the regulation that makes even a minimum of privacy impossible.
- **Freedom of thought conscience and religion:** Church law is meant to order the life of the sacramental community of believers and therefore presuppose a free acceptance of the faith. There is no sense in imposing church law on people who do not believe themselves bound by such a law who want to have no part in the community.
- **Freedom of opinion and expression:** the usual ecclesiastical policy of presuming the necessity of secrecy and of only occasionally allowing publicly should be reversed so that the necessity of publicity is presumed and secrecy only occasionally imposed when there are compelling reasons for it.
- **Freedom assembly and association:** The principles which govern freedom of association in the church have been set out in the constitution on the apostolate of the laity.
- **Democracy:** the indispensable condition for the further development of democratic structures within the church is the development of each one's awareness of their own personal responsibility to the Lord.
- **Participation in the cultural life of the community:** Universal declaration of human rights can be an inspiration, not only for a new codification of Christian rights in a new church order, but also for the growth of a social law as has already happened in the legislation.

CHAPTER FIVE: THE JURISDICTIONAL POWER OF THE CHURCH

5.1. Church Authority (Power)

- The church as a social organization, its power took place in exercising the jurisdiction for any violence of jurisdictional sphere.
- The Church Authority (Power) was put by the founder of the church Jesus Christ (Mat. 18:5-17).
- The founder of the church had transmitted the right of judging the brothers to the apostle.
- Again, the bishop has this right since he is responsible to control all misunderstandings among the believers
- The clergy in this situation should be obedient to the church jurisdiction as laymen obey to spiritual matters.
- The church legislation on the base of church practice of the previous one, all offences of the (lay men) believers, were brought before the church tribune even after the recognition of church liberty in the Greco-Roman Empire.
- All cases which are about defence of the members of the clergy in implementing sacred things are judged before the tribune of the church

5.2. Disciplinary law of the church

- According to the church law, the tribune of the church and the penal law in the church are applied to: laymen , clergies and monks
- **The procedure of disciplinary law of the church**
- The body of justice
- Charge procedure order
- Kinds of evidence
- Justice procedure order

5.3. **Church Tribune and Church Legislation**

- As it stated in the Second Ecumenical Synod, If the member of the clergy is accused by other clergy bishops, the question should be brought before the ecclesiastical tribune (Canon 6).
- If the metropolitan is also in a position to be judged, he will be present before the patriarchate tribune.
- The clergy and monks have to be present before the episcopal tribune, while the bishops be present before the metropolitan tribune
- If the laymen is also in a position to be judged, he/she will, be present before the Parish church tribune with regard for all offense like:
- The decision of illegal marriage contract
- Withdrawal of marriage
- The legal marriage question.
- against faith,
- church hierarchy,
- the church right and promise.
- **The church tribune can penalize these offences;**
- with prevention receiving Eucharist for many hours
- With excluded from the community of believers

5.3.1. Level of Church Tribune

- There are four level of Church Tribune such as patriarchal, metropolitan, episcopal, and archpriest Church Tribunes.
- **The metropolitan tribune:** which is mentioned in the canon source is administered by the synod. The metropolitan forms the first instance in quarrel among the diocese bishops. Today the jurisdiction in this regard is exercised by the central organ that is superior in the autocephalous church. According to the existence status, the metropolitan tribune forms the first instance.
- **The bishop tribune**: It is always established in the church from the bishop, the elected member by the diocesan clergy.
- The sources of church law used in the bishop tribune are real and exact that of discussed and decided in olden times.
- **The archpriest Church Tribune:** The most inferior instance of the church tribune is the tribune of archpriest (the rector which is not independent).

5.3.2. The General Church Crime and Church Tribune

- **Apostasia**: it is the abandon of the Christian faith and embraces some none Christian admission apostolic on can be either intentional or forced
- **Heresy**: it is intentional rejection and being stubborn of some fixed dogma of the church or dogmatic holding for heretical dogmatic opinion blamed by the church. The penalty of the church for this anathematized.
- **Schism**: it is the separation or division of the church due to different understanding of some object which are lesser importance to the church teaching or a certain problem easy for reconciliation
- **Simonism**: it is a serious offense consisted with spiritual gift. The name is derived from Simon who offered money to the apostles for spiritual evidence

5.3.3.The Crime of the Clergy and Church Tribune

- Offence which is regarded as a special church service is read in the source of church law as follows:
- The ordination for the second time of the bishop, the priest and the deacons for the same rank.
- Committing by his own authority sacred things by a priest legally removed due to an offence.
- Performing ordination by his own power of an episcopes outside of his diocese without the will of the diocese bishop.
- The performance of divine service by a clergy into percales without the knowledge of the diocese bishop.
- Leaving the service place by his own power, and the acceptance by other bishop, priest or deacon without the knowledge of the skilled church authority.
- Leaving off a diocese bishop of his diocese and waiting a long time outside his diocese

The Crime of the Clergy and Church Tribune…

- The negligently of a bishop or priest, the written ritual for performing sacred things.
- The negligently by a bishop or priest and implementing the duty function of the teacher in the church.
- The violation of secret witness.
- The wasting of church property or its utilization for its scope.
- Occupation with affairs which is not related directly to the church service and his duty negligently.
- The negligently of the cloths which do not correspond to the church character.
- A high disloyalty
- Conspiracy against the legal authority
- Untruthfulness
- Dishonour of things sacramental to God
- Insulting and false accusation
- Theft (hurtful), Moneylending, Murdering and Beating some one
- Adultery, prostitution and drunkenness (Passing time in drinking house)
- Play or chance play
- Visiting of localities of laughter

5.3.4. The Church Tribune Special Procedure

In the Case of accuser

- All the quarrel created among Christians is debated by Christians to find out the truth in the good model as well as giving a right sentence.
- The charge must be raised by the accusers by witnesses
- The Person has offered the necessary evidence to convince the judge about the legality of the charge
- Someone who does not have an Orthodox faith cannot be accuser.
- In the issue of the church, a charge against a member of the clergy cannot be raised unless by co-religious
- A charge must be public; a secret charge is not acceptable by the bishop
- The accuser must read exactly all points of charges mentioned by him in his charge and to call on two or three witness for strengthening the truth by his indication

The Church Tribune Special Procedure…

In the Case of accused

- The accused has to reject the attack of the accuser to combat the accusation and to show his innocence by providing evidence.
- In this process, the tribune plays more of passive role.
- The accused is obliged to be present at the tribunes for judgement in the same day in which he received the written order
- in case when he is not present, in the absence of the motive which is to be justified, the obstacle is penalized.
- The canon stated about the lawyer before the tribune.
- Again discussed about the witness permitted on debate affairs in dispute before the tribune of the church.

Thank you